



Snowplowing / Salting / Sanding / Snow Removal Contract – Seasonal

This Contract is made as of the last date signed below (**the “Effective Date”**) between Inland Devon Self Storage Holdings LLC doing business as Devon Self Storage (“Devon”) located at _____ (the “Property”) and Farmer Development, Inc. (the “Contractor”) located at 124 N. Grand Ave. Fowlerville MI 48836. The Contract will begin at 12:01 a.m. _____ on ____ (“Commencement Date”) and end on _____ both dates inclusive (“Term”).

Devon wishes to retain the services of the Contractor and the Contractor agrees to provide Devon the services in accordance with the terms and conditions of this Contract.

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, and intending to be legally bound, the parties agree as follows:

1. SERVICES

- A. Fixed Seasonal Pricing: Contract will automatically take care of the winter weather by providing salting, sanding, and snow removal (“the Services”) for Devon in accordance with the terms and conditions of this Contract. Devon will pay the Contractor as follows.

i.	Base Monthly Amount	_____
ii.	Tax (if Applicable)	_____
iii		
.	Total Contract Amount	_____

- B. The Base Amount shall be paid in five (5) equal installments as follows:

	Date	Amount (including tax)
#		
1	December	_____
#		
2	January	_____
#		
3	February	_____
#		
4	March	_____
#		
5		_____

2. The Contractor shall perform and provide Devon with the services at the property, in a good and workmanlike manner, and in accordance will the following specific requirements:



- a. Snow, ice and/or slush shall be plowed from all driveways, entrance ways and parking areas on the property, as well as other paved areas, including areas in front of storage units and buildings and **include salt with every push completed**, (within 12 inches of building) at the following times:
- i. Before the hour of 7:30 A.M. whenever there has been a snowfall, drifting snow and/or slush or ice accumulation of two (2) inches or more.
 - ii. Within two (2) hours of any snowfall, drifting snow and/or slush or ice accumulation in excess of two (2) inches during business hours, not to exceed one (1) time per business day in addition to A (i).
- b. Clear access shall be maintained for disposal, garbage, and waste companies to service all dumpsters at the property.
- c. All Fire Hydrants must be kept free from snow and easily accessible in case of emergencies.
- d. At an additional request of Devon, the areas referred to in Section 2A above shall be salted. Devon will pay for this additional salting request at a per trip rate of the following:

25% of Property or Customer Parking	\$ _____
50% of Property (as directed by Regional Director)	\$ _____
100% of Property	\$ _____

- e. At the request of Devon, all plowed snow and ice shall be removed from the property as needed. For Services to be performed, Devon shall pay for such removal at the hourly rate mutually agreed to.

Devon shall pay for such removal per hour at a rate of \$ 500

(Contractor to attach sheet giving breakdown of equipment and personnel included in hourly rate, incorporated herein as Exhibit A).

- f. At the request of Devon, snow shall be removed from the area up against the storage units and buildings (12-inch area described in paragraph 2. A.) by either blowing or hand removal.

Devon shall pay for this service at per hour at a rate of \$ 500

(Contractor to attach sheet giving breakdown of equipment and personnel included in hourly rate, incorporated herein as Exhibit A).

- g. Prior to the Commencement Date, the Contractor shall stake all boundaries (including but not limited to all landscape areas and curb islands) of areas to be plowed so as to minimize the likelihood of injuries, accidents, and property damage. The stakes shall be at least 30" above grade level with the top 3" painted with a fluorescent paint. The Contractor shall regularly inspect for, and shall remove/replace, any and all damaged stakes at the Contractor's own cost and expense throughout the term. The stakes shall be removed by the Contractor at the end of the term.
- h. All equipment at the property by Contractor must be suitable for the size and dimensions of the property. All snowplowing equipment used on the property must have skip bars or rollers on the contact surface of the plowing blades to minimize the possibility of asphalt and/or concrete damage. All snowplowing blades must



cleanly remove all snow, ice and/or slush. The Contractor shall use heavy equipment, when necessary, at no additional cost to Devon. The Contractor must obtain Devon prior written permission for the storage of any equipment, vehicles, sand, or salt on the property. All such items must be removed from the property with 7 days following the end of the term.

3. PRICING & PAYMENT

- a. In exchange for the goods and services provided by the Contractor. Devon shall pay the Contractor in accordance with the fees stated above and all payments shall be made net 30 days from receipt of a proper invoice. Contractor must submit invoices for work requested and performed within the specific month the work was completed. Invoices submitted after the 15th day of the month will be processed for payment the following month. For additional work requested by Devon – described in paragraphs 2.d through 2.f above, after the work has been performed, Contractor must submit an invoice within the specific month the work was completed. Devon will review and approve proper invoices for payment. Invoices submitted after the 15th day of the month will be processed for payment the following month.
- b. Devon will have the right to set off any amount due or payable to Contractor hereunder against any claim or charge Devon may have against Contractor. Devon shall have no obligation to pay any invoice submitted more than ninety (90) days from the date when Contractor should have submitted such invoice according to the terms of this Contract. If Contractor determines that it has any inquiries, problems or believes there are errors or discrepancies with respect to any amounts due under this Contract, it shall give Devon written notice thereof within ninety (90) days from the date on which the Services that gave rise to such inquiry, problems and/or discrepancy, etc., were performed. Contractor's failure to give Devon such notice or Contractor's failure to invoice Devon for any Services or expenses in accordance with this Contract shall constitute a waiver of any and all rights which Contractor may have to any such payment, adjustment, charge, or reimbursement.
- c. Contractor must submit a form W-9 prior to the first payment due date. No payments will be made until W-9 is received from Contractor.

4. Taxes:

Contractor is responsible for and will pay all applicable taxes, charges, fees, levies, or other assessments imposed or collected by any governmental entity (or political subdivision thereof) worldwide on sales, use, transfer of products and services. Furthermore, Contractor will pay any value added tax or any other duties or fees related to any payment by Devon to Contractor for products and or services provided to Devon under or pursuant to the Contract.

5. WARRANTY

Contractor warrants and represents that (1) it is qualified to perform the Services; (2) all the Services shall be performed by qualified personnel, who will be properly supervised; (3) the Services shall be performed in a professional and workmanlike manner in strict accordance with the terms and conditions of this Contract, including all specifications, requirements and time schedules stated herein, and applicable commercial standards generally observed in the snow plowing and grounds maintenance industry, and (4) that the Services shall be free from defects in workmanship and conform to the requirements of this Contract for a period of one (1) year. This warranty shall



extend to all necessary costs of repairs and replacements, as well as to all consequential damages resulting from such defects. Devon will promptly inform Contractor of any breach of warranty related to the Services and Contractor agrees it shall immediately take any and all measures required to satisfy its warranty obligations to correct any defects, without cost to Devon. In the event Contractor fails to properly meet its warranty obligations stated herein, Devon may perform all or part of same or obtain substitute services and charge or assert a set off to any amounts owed to Contractor for the cost of doing so.

6. CHANGES

The parties acknowledge and agree that during the term of the Contract the Services, as set forth herein may be modified and/or expanded from time to time by the Parties. No changes to the Services will be authorized by Devon and Devon shall have no obligation to pay for any additional or modified Services, until a change order has been agreed upon and signed by an authorized representative of Devon.

7. STATUS MEETINGS

The parties will meet at least annually and with greater frequency if necessary (e.g., weekly, monthly) to review the progress of the Services and to address any issues that may arise regarding performance of the Services and/or this Contract.

8. ACCEPTANCE

Upon delivery, Devon will review the Services to confirm they meet the requirements of this Contract. Devon will notify Contractor in writing (email is sufficient) of any defects and/or deficiency, and Contractor will use its best efforts to correct said deficiencies and re-deliver the Services. If Devon reasonably determines that the Services have not been cured or corrected within ten (10) workdays after notifying Contractor of any deficiencies, Devon may at its discretion, agree to permit Contractor an opportunity to continue to cure the deficiencies in the Services, Contractor will reimburse Devon for any amounts paid for the rejected Services, and Devon will have no further liability for such rejected Services.

9. SUBCONTRACTORS

The Services will only be performed by Contractor and will not be subcontracted to any third party or other independent contractors or consultants without Devon's prior, written approval, which approval shall be at Devon's sole discretion. Devon shall have no obligation to pay for Services that were subcontracted by the Contractor without the prior written approval of Devon. Contractor will remain liable for all responsibilities and obligations of Contractor under this Contract, even if some responsibilities and obligations are performed by a subcontractor(s), approved by Devon or otherwise.

10. COMPLIANCE WITH LAWS; PERMITS; AND LICENSES

Contractor agrees to operate in full compliance with all governmental laws, regulations, and requirements applicable to its performance of this Contract and the Services to be provided hereunder. Contractor shall obtain and maintain in force, at its own expense, all licenses, permits, and approvals required for its performance under this Contract, and will obtain any and all required inspections, authorizations, and approvals prior to commencement of the Services. Contractor shall promptly notify Devon in the event it knows or has reason to believe that any act or refrainment from



acting required by or contemplated by this Contract violates any applicable law, rule, or regulation (whether criminal or non-criminal).

11. COMPLIANCE WITH DEVON RULES AND PROCEDURES

In addition, at all times that the Contractor and its employees and its permitted subcontractors are working at Devon's premises, they shall observe the working hours, rules and security procedures as established and implemented by Devon from time to time. Contractor will immediately report to Devon all accidents or occurrences resulting in personal injury or property damage arising out its performance of the Services under this Contract and will furnish Devon with a copy of any reports made by Contractor, including but not limited to any report provided to Contractor's insurer or to others, of such accidents and occurrences.

12. VENDOR CODE OF CONDUCT

Contractor represents and warrants that it, as well as its employees performing Services for Devon, and its subcontractors and consultants, are familiar and strictly complying with (a) Devon's Vendor Code of Conduct which is incorporated herein as Exhibit B and made a part of this Contract as if fully set forth herein, and (b) all laws and regulations on bribery, corruption, and prohibited business practices.

13. INDEMNIFICATION

Contractor agrees, at its own expense, to indemnify, defend and hold harmless Devon (and its affiliates, officers, employees, directors, agents and representatives), from any and all losses or damages whether in contract or injury to persons or property (including reasonable attorneys' fees) in connection with any claim, suit, action or other proceeding made or threatened by a third party ("Claim") that arises from Contractor's breach of any representation, warranty, covenant or other obligation in this Contract except to the extent such Claim is caused solely by Devon's willful misconduct or gross negligence.

14. AUDIT

Devon may, on reasonable notice to Contractor, audit Contractor's books, ledgers, supporting records/documentation and related procedures and controls, relating to any charges paid by Devon in connection with the Contract.

15. RECORD KEEPING

All accounting records in connection with the Contract will be maintained in accordance with generally accepted accounting principles and Contractor shall store the relevant business, technical and accounting records subject to applicable law.

16. CONTRACTOR/CONTRACTOR PERSONNEL

Contractor shall ensure that each employee, agent, consultant, subcontractor, or other person whom it is authorized to retain under the Contract, will comply with all of Contractor's obligations and responsibilities under the Contract.

17. DEFAULT

In the event of any default under this Contract by the Contractor, Devon, at its option, may hire another contractor to perform services similar to those provided herein, and deduct the cost thereof from amounts due the Contractor under this Contract. Devon shall also have the right to exercise any other legal right or remedy available to it at law or in equity in the event of such default.



18. **TERMINATION**

(a) Termination for Breach. Either party may terminate this Contract at any time in the event of a breach by the other party of a material covenant, commitment or obligation under the Contract that remains uncured for ten (10) days following written notice thereof. Such termination shall be effective immediately and automatically upon the expiration of the applicable notice period, without further notice or action by either party. Termination shall be in addition to any other remedies that may be available to the non-breaching party.

(b) Termination for Convenience. Devon may terminate this Contract at any time with or without cause by giving ten (10) days prior written notice.

(c) Obligations upon Termination. Termination of this Contract for any reason shall not discharge either party's liability for obligations incurred hereunder and amounts unpaid at the time of such termination. Upon termination, Contractor shall return any Devon Confidential Information that is in its possession at the time of termination.

19. **SAFETY**

The Contractor shall be solely responsible for the safety of its agents, employees, consultants, and subcontractors.

20. **ASSIGNMENT**

The Contractor may not assign all or any rights or obligations under this Contract without the prior written consent of Devon.

21. **INSURANCE**

Throughout the term of this Contract, Contractor shall add Devon as a named insured under its insurance policy and maintain the coverages and meet the requirements for insurance identified in Exhibit C. Contractor will provide Devon with a certificate(s) of insurance evidencing the required coverages prior to performing any work under this Contract and, upon Devon's request, provide true copies of the insurance policies. The insurance policies and certificates required hereunder will include a provision that coverage will not be non-renewed, materially changed, cancelled, or allowed to expire until at least thirty (30) days' prior written notice has been given to Devon. If Contractor, at any time, neglects or refuses to provide the insurance required herein, or should such insurance be cancelled or materially changed without Devon's consent, Devon will have the right to terminate the Contract without penalty.

22. **GENERAL**

- a. This Contract contains the entire Contract between Devon and the Contractor with respect to the subject matter hereof.
- b. This Contract may not be amended orally, but only by a written instrument executed by both the Contractor and Devon.
- c. Devon's failure to exercise any right hereunder shall not operate as a waiver thereof.
- d. Any supplies and/or services performed by Contractor shall be performed as an independent contractor, and Contractor is solely liable for applicable payroll or income taxes, or work permits.



- e. Contractor shall not use the name or trademarks of Devon or its subsidiaries or affiliates or refer to or identify Devon or its affiliates in any marketing (including without limitation testimonials or customers listings) or press releases without the prior written consent of Devon.
- f. This Contract may be signed in counterparts, and by facsimile or electronic signatures, which facsimile, electronic and/or original counterparts shall be deemed originals for all purposes, and which together shall be deemed one Contract.

OTHER DOCUMENTS

Exhibit A – Contractor Sheet (Breakdown of Equipment & Personnel)

Exhibit B – Vendor Code of Conduct

Exhibit C – Insurance Requirements

THIS CONTRACT IS AGREED TO AND ACCEPTED BY:

BY:	_____	COMPANY NAME	Farmer Development, Inc.
PRINT NAME	_____	BY:	_____
REGIONAL DIRECTOR	_____	PRINT NAME	Zak Kranich
EMAIL ADDRESS	_____	TITLE	Account Manager
		MAILING ADDRESS	124 N. Grand Ave. Fowlerville MI 48836
		EMAIL ADDRESS	snow@farmerdevelopment.com
		TELEPHONE	
		NUMBER	(517)719-6048
		TAX ID #	27-4625225



EXHIBIT A

Contractor Sheet

(Breakdown of Equipment & Personnel)



EXHIBIT B

VENDOR CODE OF CONDUCT

General:

Devon is committed to fair and ethical business conduct. Accordingly, the company requires its partners, contractors, and vendors, as well as their employees' agents and subcontractors, to embrace this commitment to integrity by complying with our Vendor Code of Conduct. For purposes of compliance with our Vendor Code of Conduct, the term "Vendor" is defined as all contractors, consultants, and vendors engaged in providing products and services to Devon.

Vendor Code of Conduct:

Ethical Business Practices

Devon is committed to conducting our business in accordance with the highest ethical standards and in compliance with all applicable laws, rules, and regulations. We expect our Vendors to share our principles and uphold our standards and for each to develop policies and programs as appropriate to ensure that all workers understand and adhere to these standards.

Anti-Bribery

Devon does not tolerate corruption or bribery in any form, and we expect our Vendors to fully comply with requirements of all applicable anti-corruption laws, including but not limited to the U.S. Foreign Corrupt Practices Act.

Privacy and Data Protection

We expect our Vendors to protect confidential information. Vendors must adopt and maintain processes to provide reasonable protections for personal, proprietary, and confidential information, including information that they access, receive or process on behalf of Devon. Information should not be used for any purpose beyond the scope of the signed agreement with Devon.

Grievance Mechanism

We expect our Vendors to have a process through which their workers can raise workplace concerns without fear of retaliation. This process should be transparent and understandable to the Vendor's workers and should ensure the protection of accusers.

Licensing/Permits

Vendors must obtain all required licenses and permits to conduct its business and complete the scope of work as provided for in its agreement with Devon.

Antitrust

Vendors must comply with applicable antitrust and fair competition laws. Unethical business practices such as improper exchange of competitive information, price fixing, bid rigging, or improper market allocation are prohibited.

Conflicts of Interest and Fair Dealing

Vendors shall not offer gifts, favors, or benefits that are intended, or could appear, to influence Devon's employees to not act in Devon's best interest.

Financial Responsibility/Accurate Records



Vendors must accurately record and maintain business records, including all financial records related to its agreement with Devon and any submission to regulatory authorities related thereto.

Labor and Human Rights

We require our Vendors to treat people with respect and dignity, encourage diversity, promote equal opportunity for all, and help create an inclusive and ethical culture.

Wages and Benefits

Vendors must comply with all applicable wage and compensation requirements under applicable labor laws for regular work, overtime, maximum hours, piece rates, and other elements of compensation and employee benefits.

Harassment

Harassment of employees, applicants, customers, contractors, other vendors, or suppliers by the Vendor or its employees or subcontractors will not be tolerated. Harassment includes, without limitation, sexual harassment, verbal harassment, physical harassment, and visual harassment.

Health and Safety

Vendors shall incorporate health and safety management practices into all aspects of their business, including those measures required to be implemented by federal, state, and local authorities. Vendors shall fully comply with local, state, and federal safety and health regulations.

Summary

This Code of Conduct sets forth Devon's expectations for all Vendors contracted with or doing business with Devon.

Any facts or circumstances which are likely to lead to any Vendor's inability to meet the requirements and expectations of this Code should be reported immediately to Devon.



EXHIBIT C
INSURANCE REQUIREMENTS

Contractor shall carry the following insurance coverage:

- (i) Workers' compensation insurance in accordance with the laws of the State in which the Property is located.
- (ii) Employer's liability insurance applicable to and covering all persons engaged in the performance of any work required under this Contract.
- (iii) Commercial general liability insurance, with no exclusions for bodily injury to any employee of any contractor or subcontractor, and with combined limits of liability acceptable to Devon and in any event no less than \$2,000,000 for bodily injury, property damage, and personal injury.
- (iv) Automobile liability insurance (if applicable).
- (v) Professional liability insurance.
- (vi) Blanket crime insurance.
- (vii) Umbrella liability insurance. Each such policy shall be on terms and conditions, including limits of liability, acceptable to Devon and shall name Devon as additional insured thereunder.